

Ross on Crime

A

Admission

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Admission

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[1.2600] Meaning

An admission is a formal acknowledgement by a party that there will be no contest on a matter of fact. Legislation allows the judge or magistrate to accept that concession as sufficient proof. Admission can also mean confession. This part refers only to the former meaning.

In *ML v The Queen* [2011] VSCA 193 the court emphasised that a statement is not an admission unless it is adverse to the maker's interest and that this was the case at the time the statement was made.

[1.2605] Legislation

Uniform Evidence Acts s 184;

Qld: Criminal Code s 644;

WA: *Evidence Act 1906* s 32;

Tas: Criminal Code s 361A;

SA: *Evidence Act 1929* s 34;

NZ: *Evidence Act 2006* s 9;

Can: Criminal Code s 655.

Cases

These sections refer to admissions of fact. Admissions of law cannot be made to the detriment of the client: *R v Stokes and Difford* (1990) 51 A Crim R 25 (NSW CCA) Hunt J said (at 32):

Counsel cannot concede a matter of law to the disadvantage of the accused: *Pemble* (1971) 124 CLR 107 at 133; *Galambos* (1980) 2 A Crim R 388 at 395, 396–397.

There must be authority to make an admission of fact:

In *R v Balchin* (1974) 9 SASR 64 (CCA) the court said in a joint judgment (at 67):

[I]t could well constitute a breach of professional duty to an accused person if his counsel, without specific authority to do so, should make any admission which could be detrimental to the interests of the accused, or which otherwise might have the effect of depriving him of a fair trial.

Yet in *R v Hughes* (2007) 99 SASR 161 (CCA) the court held that the section did not have to have personal knowledge of the matter of fact that was the subject of the admission.

The prosecution can concede a fact in favour of an accused: *R v Maes* [1975] VR 541 at 550–552 (CCA); *R v Forde* (1986) 19 A Crim R 1 at 9 (Vic CCA). In NT Criminal Code s 379(2) empowers a prosecution admission.

[1.2610] Formal admissions

In a complicated trial a court will encourage formal admissions.

In *R v Mitchell* [1971] VR 46 (CCA) the court said in a joint judgment (at 64):

Where such a mass of evidence and length of trial is involved, an intolerable burden is imposed on all concerned and particularly upon the jury. Whilst a community, such as ours, which is regulated by the principles of the common law, cannot concede that any case is too complex or too extensive to be heard and determined in due process of law, there is a real danger that the system will be frustrated and brought into public disrepute, unless those concerned with the conduct of the trial have the courage and a sense of responsibility to take advantage of the means provided for delimiting the issues, such as s 6 of the *Evidence (Amendment) Act 1965*.

[1.2615] Admission of fact should be in writing

In *R v Birks* (1990) 19 NSWLR 677; 48 A Crim R 385 (CCA) Lusher J said (at 702; 409):

[I]n a criminal trial an admission, and a waiver is in the nature of an admission, can only be made by an accused on the advice of counsel, sensibly and usually in writing, which is difficult to obtain or give in the run of a vigorous cross-examination. Lastly, an accused cannot be required to make an admission or even to consider one.

In *Byrne v Godfree* (1997) 96 A Crim R 197 (WA) Walsh J ruled (at 202):

Admissions in criminal proceedings must be made with particularity and formality.

[1.2620] Withdrawal of admission

In *R v Shalala* (2007) 17 VR 133; 176 A Crim R 183 (CA) the defence in opening said that there would be no contest about DNA evidence. Later evidence cast doubt on that concession but the trial judge would not allow the defence to withdraw it. Appeal against conviction allowed. The court said in a joint judgment (at 138; 189 [22]):

In the context of an adversarial and accusatorial proceeding, the making of admissions is understandably a valuable process which avoids unnecessary cost and inconvenience to the community and those affected. These are clearly important objectives but they cannot be attained at the expense of the fair trial of the accused.

[1.2625] Admission by counsel cannot be a basis for conviction

A court will not convict a person upon admissions made by his counsel, there being no evidence: *Ratray v Roach* (1890) 16 VLR 165 (FC) per Hood J.

An admission need not be made by the accused. The New South Wales procedure for when counsel makes the admission is referred to in *Smart v Pepper and Carswell* (1987) 26 A Crim R 140 (NSW). Grove J said (at 142–143):

In a footnote to paragraph 1148, R Watson and H Purnell, *Criminal Law in New South Wales*, the editors accurately state:

The customary practice is for the admissions to be reduced by writing and handed to the Judge who asks the accused “Do you on the advice of your counsel admit ...?” reading aloud to the accused the contents of the document.

It is by no means the case that this customary, and no doubt prudent, practice is the exclusive method by which an admission pursuant to s 404 may be taken. One requisite of the section is the advice of counsel. The other specification of the section is that it is the accused who may make the admission. It seems to me that there may be many ways by which a tribunal could be satisfied that an accused was making such an admission on the advice of his counsel. I do not exhaust the possibilities but there is the customary method referred to in the practice text; the accused may articulate the terms of his admission and his counsel inform the court of his advice; the whole of the admission and the circumstance of advice by counsel may be simply reduced to writing and signed by the accused without the judge undertaking the process of oral confirmation or, in my view, counsel may make the admission in the presence of hearing of the accused. In the last-mentioned case the advice of counsel (which includes attorneys – s 4) is implied from his making of the statement and the assent of the accused to the admission from his continued retainer of his advocate.

It should be observed that the use of such a procedure inheres a risk of a subsequent claim of misunderstanding or the like and this can easily be avoided by following the customary practice. No claim of that type is here advanced.

Approved:

R v Postiglione (1991) 24 NSWLR 584; 57 A Crim R 301 (CCA).

[1.2630] Admission by an accused

An admission on a particular issue by an accused does not in principle preclude the prosecution from adducing further evidence on that issue:

R v Longford (1970) 17 FLR 37 (ACT, Gibbs J);

R v Smith [1981] 1 NSWLR 193; (1980) 2 A Crim R 245 (CCA);

R v Raabe [1985] 1 Qd R 115; (1984) 14 A Crim R 381 (CCA).

As to the position under *Uniform Evidence Acts* s 184 see *R v Frazer* (2002) 128 A Crim R 89 (NSW CCA) per Dowd J (at 96–97 [45]–[46]).

The accused must have some knowledge of the admitted fact for it to have probative force.

In *R v Swaffield* (1998) 192 CLR 159; 96 A Crim R 96; 151 ALR 98 Brennan CJ wrote in a footnote (184; 113; 113 [30]):

In criminal cases, admissions of a fact of which the confessionalist has no personal knowledge are sometimes treated as having no probative force: see *Surujpaul v The Queen* [1958] 1 WLR 1050; [1958] 3 All ER 300; *Comptroller of Customs v Western Electric Co Ltd* [1966] AC 367 at 371; *R v Hart* [1979] Qd R 8; but cf *R v Brady* (1980) 2 A Crim R 42; *Anglim & Cooke v Thomas* [1974] VR 363 at 372; *R v Longford* (1970) 17 FLR 37.

It is unclear if the prosecution can adduce evidence in relation to a factual matter upon which the accused has made a formal admission. The better view is that no such evidence can be adduced: *Stubley v Western Australia* (2011) 242 CLR 374; 207 A Crim R 202; [2011] HCA 7, per Heydon J.

See also

John Goldring, “Can Exculpatory Statements Be Admissions” (2004) 25 Aust Bar Rev 14–28.

Confession at [3.5300].